

**SUBSTITUTE FOR
SENATE BILL NO. 481**

A bill to amend 2016 PA 62, entitled
"Human trafficking notification act,"
by amending sections 2, 3, and 5 (MCL 752.1032, 752.1033, and
752.1035).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2. As used in this act:

2 (a) "Adult entertainment establishment" means either of the
3 following:

4 (i) An adult entertainment establishment that holds a topless
5 activity permit under section 916(3) of the Michigan liquor control
6 code of 1998, 1998 PA 58, MCL 436.1916.

7 (ii) Any other retail establishment that provides adult-
8 oriented entertainment in which performers disrobe or perform in an



1 unclothed state for entertainment.

2 (b) "Department" means the department of licensing and
3 regulatory affairs.

4 (c) "Hotel" means a building or group of buildings located on
5 the same or adjoining pieces of real property that is used in the
6 business of providing lodging to travelers and temporary residents.
7 Hotel includes a motel, inn, or other similar lodging.

8 (d) ~~(e)~~—"Human trafficking notice" means the notice described
9 ~~in~~under section 5.

10 (e) "Short-term rental" means the rental of a single-family
11 dwelling, dwelling units in a building housing 1 to 4 separate
12 dwelling units, or a unit or group of units in a condominium
13 project, for terms of not more than 30 consecutive days. Short-term
14 rental does not include the rental of a hotel, motel, hotel
15 condominium, home, or a condominium unit that is located within a
16 resort that offers amenities such as golf, a skiing restaurant
17 facility, or group meeting accommodation.

18 Sec. 3. (1) The department of transportation shall post a
19 human trafficking notice on the premises of each rest stop and
20 welcome facility in this state in the manner described in this act
21 and as required by the department under this act.

22 (2) Each local unit of government that operates a rest stop or
23 welcome facility shall post a human trafficking notice on the
24 premises of that rest stop or welcome facility in the manner
25 described in this act and as required by the department under this
26 act.

27 (3) Each local unit of government, or authority allowed by
28 law, that provides bus or rail transportation services to the
29 public shall post a human trafficking notice on the premises of any



1 station that provides those services in the manner described in
 2 this act and as required by the department under this act.

3 (4) Each of the following ~~shall~~**must** post a human trafficking
 4 notice on its premises in the manner described in this act and as
 5 required by the department under this act:

6 (a) Any entity that owns property that has been found by a
 7 court to constitute a public nuisance due to acts of prostitution
 8 or human trafficking being conducted on the property or arising out
 9 of the ownership or use of the property.

10 (b) An adult entertainment establishment.

11 (c) ~~Public airports.~~**A public airport.**

12 **(d) A hotel.**

13 **(e) A short-term rental.**

14 Sec. 5. A human trafficking notice required to be posted under
 15 this act ~~shall~~**must** meet the following requirements:

16 (a) Be of a design and style to provide proper notice under
 17 this act.

18 (b) Be no smaller than 8-1/2 inches by 11 inches and contain
 19 the following notice in boldfaced type of not less than a 14-point
 20 font determined appropriate by the department:

21 "If you or someone you know is being forced to engage in any
 22 activity and cannot leave, whether the activity is commercial sex,
 23 housework, farm work, or any other activity, please contact the
 24 National Human Trafficking Resource Center hotline at 1-888-373-
 25 7888 or text 233733 to access help and services. The victims of
 26 human trafficking are protected under U.S. laws and the laws of
 27 this state.".

28 (c) Be of durable construction.

29 (d) Be posted in the English, ~~and~~ Spanish, **Arabic, traditional**



1 **and simplified Chinese, Bangla, French, Hmong, Vietnamese, and**
2 **Wolof** languages and in any other language determined appropriate by
3 the department in consultation with the attorney general. The
4 department may require the posting of other languages under this
5 subdivision in specified areas of this state due to the languages
6 used within those specified areas, **including the language used by**
7 **any of the following, as applicable:**

8 (i) A population with limited English proficiency that, based
9 on reliable data, constitutes 3% or more of the overall population
10 within the geographic area of an entity required to post a human
11 trafficking notice under sections 3 and 4.

12 (ii) Five hundred or more individuals residing within the
13 geographic area of an entity required to post a human trafficking
14 notice under sections 3 and 4.